

Legal Report – Ravi Kumar v. BESCOM

1. Cause of Action

- ****Date of outage****: 3 March 2026
- ****Nature****: 11 kV feeder jumper burnt → complete area outage
- ****Restoration period****: 7 days (168 hours)
- ****Statutory ceiling****: 72 hours for 11 kV faults (KERC Supply Code 2021, cl. 7.2 r/w cl. 13.1)
- ****Breach period****: 96 hours beyond ceiling

2. Applicable Law

- KERC Supply Code 2021 – mandatory compensation ■100/hour after 72 h
- Electricity (Rights of Consumers) Rules 2020, r. 12 – immediate reporting obligation
- Indian Contract Act 1872, s. 73 – consequential damages
- Consumer Protection Act 2019 – deficiency in service

3. Merits

A. Statutory Compensation

- 96 excess hours × ■100 = ■9,600 automatic entitlement
- No force-majeure exemption available (system-wide failure, not exempted underground cable)

B. Consequential Loss

- Claimed amount: ■42,000
- Evidentiary bundle: GST invoices, work-order, bank entries, Form-16, mitigation receipts
- Satisfies "actual damage" test under s. 73; electronic records admissible under Evidence Act s. 65B

C. Punitive Component

- State Commission precedents award 20-50% of compensatory amount where outage > statutory limit
- Estimated punitive range: ■2,000–■5,000

4. Weak Point

- Grievance-redress penalty (KERC CG Regulations 2020, reg. 7) – CRM auto-acknowledgement within 30 min and technical reply on day 28 may suffice; factual dispute remains

5. Relief Sought

1. Mandatory compensation: ■9,600

2. Consequential damages: ■42,000

3. Punitive/exemplary damages: ■5,000

4. Costs of proceedings: ■2,500

****Total**:** ■59,100

6. Evidence Checklist

- ☒ [x] Complaint No. 456789 dated 3-3-2026
- ☒ [x] BESCOM outage SMS/press note
- ☒ [x] GST invoices (Feb–Mar 2026)
- ☒ [x] Client work-order with penalty clause
- ☒ [x] Bank statement entries
- ☒ [x] Form-16 salary certificate
- ☒ [x] Genset & data-pack receipts (mitigation)
- ☐ [] BESCOM response copy (to be filed)
- ☐ [] Restoration confirmation SMS (to be filed)

7. Forum

File before the Karnataka State Consumer Disputes Redressal Commission (Bengaluru bench) under Consumer Protection Act 2019, s. 49(2)(d) for deficiency in electricity service.